

Important Information for Tentative Rulings and Hearings:

1. Please review and follow the Tentative Ruling Instructions which can be found on the Court's website using the following link: <https://sf.courts.ca.gov/divisions/unified-family-court/ufc-tentative-rulings>.
2. If you wish to make an objection to the Tentative Ruling in your case, you must notify the other party (unless there is a restraining order in place) and the Court Clerk in the Department where the hearing is scheduled of your objection by 4:00 PM the Court day prior to the hearing date. Court days do not include Court holidays, Saturdays, or Sundays. The Court's Holiday Schedule can be found on the Court's website using the following link: <https://sf.courts.ca.gov/general-information/holiday-schedules>.
3. To contact the Court Clerk in Dept. 403 to make an objection to the Tentative Ruling in your case, please call (415) 551-3741 or send an email to Department403@sftc.org.
4. To contact the Court Clerk in Dept. 404 to make an objection to the Tentative Ruling in your case, please call (415) 551-3744 or send an email to Department404@sftc.org.
5. To contact the Court Clerk in Dept. 414 to make an objection to the Tentative Ruling in your case, please call (415) 551- 3756 or send an email to Department414@sftc.org.
6. When you contact the Court Clerk to make an objection to the Tentative Ruling in your case, please specify the paragraph(s) and / or line number(s) of the Tentative Ruling which contains the language to which you object.
7. You may appear at your hearing either (a) in-person; (b) by video; or (c) by phone. Pursuant to SFLR 11.7(D)(4), if you choose to appear by video or phone, you must be continuously connected to Zoom from 8:50 a.m. until 12:00 p.m. or until your hearing is concluded (or from 1:20 p.m. until 4:30 p.m. or until your hearing is concluded, if your hearing is scheduled to start at 1:30 p.m.). If you fail to appear in-person, by video, or phone, the Court may proceed with the hearing in your absence. The Court is not required to contact you before your hearing.
8. If you choose to appear by video or by phone, you must comply with the Notice and Instructions for Remote Appearances in San Francisco Family Court set forth below.

**SAN FRANCISCO SUPERIOR COURT
UNIFIED FAMILY COURT
NOTICE AND INSTRUCTIONS FOR REMOTE APPEARANCES**

You may appear at your court hearing either (1) in-person or (2) remotely by video or telephone. If you fail to appear in-person or remotely by video or telephone, the court may proceed with the hearing in your absence. **The clerk will NOT contact you.** Remote appearances by video or telephone can be made utilizing the **ZOOM** platform, **effective January 2, 2024:**

- If you are *joining by video*, go to www.zoom.com/join and follow the instructions below:
 - Type in the Meeting ID (*see below for department Meeting IDs and Passcodes*) and click "Join".
 - Click "Launch Meeting" then "Open zoom.us".
 - Zoom will launch and you will be asked for the Meeting Passcode. *Enter the passcode for your Meeting ID for the respective department for your court hearing.*
 - Enable your camera and click "Join".
 - Once you join, a prompt to use computer audio will appear, click "Join with Computer Audio".
 - **Enter your full first and last name TO IDENTIFY YOURSELF TO THE COURT.**
 - Using headphones may help you hear more clearly.
- If you are *joining by phone*, dial 1-(669)254-5252 or 1-(669)216-1590 and enter the Meeting ID and Passcode as described below.

Department 403
Meeting ID: 161 463 0304
Passcode: 114482

You can also log into your hearing **directly** using the link below:
<https://sftc-org.zoomgov.com/j/1614630304?pwd=OTZ1cVZaQlRYWXPfQ2hTaEFuZnhIZz09>

Department 404
Meeting ID: 161 305 3325
Passcode: 282709

You can also log into your hearing **directly** using the link below:
<https://sftc-org.zoomgov.com/j/1613053325?pwd=SkdXWGVkQkowckJSNnJwSSStYkR6dz09>

Department 414
Meeting ID: 161 123 0725
Passcode: 040696

You can also log into your hearing **directly** using the link below:
<https://sftc-org.zoomgov.com/j/1611230725?pwd=d1JPVDZmSEZTMlpuODhJVtZ4ZE1FZz09>

When you join the hearing on Zoom:

1. **You are to mute your audio when you are not speaking.**
2. State your name before you speak for proper identification to the court and for all the parties in your case. Only one person **MUST** speak at a time.

PROHIBITION ON RECORDING: **Do not record the hearing in any way.** Any recording of a court proceeding, *including screen shots, other visual or audio copying* of the hearing, is **prohibited**. Any violation is punishable to the fullest extent under the law, including but not limited to monetary sanctions up to \$1,000, restricted entry to future hearings, or other sanctions deemed appropriate by the court.

SUPERIOR COURT OF CALIFORNIA
COUNTY OF SAN FRANCISCO
UNIFIED FAMILY COURT

MICHAEL EDWARD GRAVES,

Petitioner

VS.

RANJIE LONG,

Respondent

) Case Number: FPT-25-378624

) Hearing Date: July 7, 2026

) Hearing Time: 9:00 AM

) Department: 403

) Presiding: BOBBY P. LUNA

REQUEST FOR ORDER RE: CHILD SUPPORT, ATTORNEY FEES AND COSTS, RETROACTIVE
CHILD SUPPORT TO 6/10/2025

TENTATIVE RULING

The 7/7/26 hearing on Respondent Ranjie Long's 5/19/26 Request for Order was continued by agreement of the parties. The Court was advised that the parties submitted a Stipulation and Order memorializing such an agreement, which the Court intends to review and sign. **No appearances are required on 7/7/26.**

SUPERIOR COURT OF CALIFORNIA
COUNTY OF SAN FRANCISCO
UNIFIED FAMILY COURT

SYMONE JEAN LEEANN SMITH,

Petitioner

VS.

CHRISTOPHER A COATS,

Respondent

) Case Number: FPT-26-378842

) Hearing Date: July 7, 2026

) Hearing Time: 9:00 AM

) Department: 403

) Presiding: BOBBY P. LUNA

REQUEST FOR ORDER OF CHILD CUSTODY, VISITATION (PARENTING TIME)

TENTATIVE RULING

The parties are ordered to appear. The parties may appear in person in Dept. 403 or remotely by Zoom video. If a party chooses to appear by video, that party must abide by the Notice and Instructions for Remote Appearances in San Francisco Family Court set forth above.

A. Procedural History

- 1) The parties are Petitioner Symone Smith (Mother) and Respondent Christopher Coats (Father). There is one minor child subject to this proceeding: Mecca Smith (DOB: 09/08/22).
- 2) On February 11, 2026, Mother filed a Request for Order seeking child custody and visitation (Parenting Time) orders. Mother seeks orders for joint legal and joint physical custody, and requests Father have parenting time from Wednesday after daycare (or 4:00 p.m.) until Saturday at 4:00 p.m.
- 3) The Request for Order to Change Visitation was originally set for Readiness hearing on March 16, 2026, which was then continued to April 20, 2026. At the April 20, 2026 hearing, the Court referred the parties to Family Court Services (FCS) mediation on June 2, 2026 and set a return hearing on June 11, 2026.
- 4) On June 9, 2026, the parties filed a stipulation and order regarding custody and visitation.
- 5) Father did not file a Responsive Declaration to Mother's Request for Order.

1 6) On June 16, 2026, the Court continued the matter to July 7, 2026 for a review hearing regarding
2 the parties stipulation and order filed June 9, 2026 and for any additional parenting time orders
3 needed.

4 7) Neither party filed an update declaration with the Court.

5 **B. Findings and Order**

6 1) This Court has jurisdiction to make child custody orders in this case under the Uniform Child
7 Custody Jurisdiction and Enforcement Act. A violation of this order may subject the party in
8 violation to civil or criminal penalties, or both. The country of habitual residence of the minor
9 child is the United States.

10 2) **The parties are ordered to appear.**

SUPERIOR COURT OF CALIFORNIA
COUNTY OF SAN FRANCISCO
UNIFIED FAMILY COURT

FRANK CORDOVA,

Petitioner

VS.

CHELSEA TAMULEVICH,

Respondent

) Case Number: FLD-24-397182

) Hearing Date: July 7, 2026

) Hearing Time: 9:00 AM

) Department: 403

) Presiding: BOBBY P. LUNA

REQUEST FOR ORDER CHANGE OF 1. TO BE ADDED TO BE LEGAL FATHER ON MINOR
CHILDREN'S BRITH CERTIFICATE. 2. ORDER CHANGING MINOR'S LAST NAMES CORDOVA-
TAMULEVICH

TENTATIVE RULING

Having read and considered the pleadings, declarations, and other evidence submitted in this matter, the
Court makes the following findings and orders:

A. Procedural History

- 1) The parties are Petitioner, Frank Cordova (Father) and Respondent, Chelsea Tamulevich (Mother). The minor children subject to this proceeding is Valentino Tamulevich (DOB: 06/11/22) and Caspian Tamulevich (DOB: 06/26/21).
- 2) On May 30, 2024, the Juvenile Court issued a "Custody Order-Juvenile-Final Judgment" in which Father was awarded sole legal and sole physical custody of the minor child, Valentino Tamulevich and assigned Family Court case number FLD-24-397182 to the matter.
- 3) On June 14, 2024, the Juvenile Court issued a "Custody Order-Juvenile-Final Judgment" in which Father was awarded sole legal and sole physical custody of the minor child, Caspian Tamulevich and assigned Family Court case number FLD-24-397193 to the matter.
- 4) On May 21, 2026, Father filed a Request for Order seeking orders that:
 - a. He be added as the legal Father on the minor children's birth certificates; and

b. An order changing the minor children's names. In particular, he is requesting the following changes:

- i. Caspian Anthony Tamulevich to Caspion Anthony Cordova-Tamulevich; and
- ii. Valentino Dior Tamulevich to Valentino Dior Cordova-Tamulevich.

5) On July 1, 2026, Mother filed a Responsive Declaration, which has been read and considered by the Court.

B. Findings and Order

1) This Court has jurisdiction to make child custody orders in this case under the Uniform Child Custody Jurisdiction and Enforcement Act. A violation of this order may subject the party in violation to civil or criminal penalties, or both. The country of habitual residence of the minor child is the United States.

2) The Court sua sponte consolidates case number FLD-24-397193 into case number FLD-24-397182 (lead case). All future filings shall be filed in the lead case.

3) Father's request to be added as biological Father on the children's birth certificates is GRANTED.

4) The California Department of Public Health, Vital Records Unit is hereby authorized to add Frank Cordova's name, as biological Father, to the children's birth certificates.

5) Father's request for an order changing the minor children's names is GRANTED. The children's names shall be changed as follows:

- a. Caspian Anthony Tamulevich is changed to Caspion Anthony Cordova-Tamulevich; and
- b. Valentino Dior Tamulevich is changed to Valentino Dior Cordova-Tamulevich.

6) The Court will prepare the Findings and Order After Hearing.

SUPERIOR COURT OF CALIFORNIA
COUNTY OF SAN FRANCISCO
UNIFIED FAMILY COURT

JAMES PROPP,

Petitioner

VS.

DENISE CHILDERS,

Respondent

) Case Number: FDI-14-781786

) Hearing Date: July 7, 2026

) Hearing Time: 9:00 AM

) Department: 403

) Presiding: BOBBY P. LUNA

REQUEST FOR ORDER:

TENTATIVE RULING

Having read and considered the pleadings, declarations, and other evidence submitted in this matter, the Court makes the following findings and orders:

A. Procedural History

- 1) The parties are Petitioner James Propp and Respondent Denise Childers.
- 2) On 12/23/25, Petitioner filed a Request for Order seeking bifurcation and termination of marital status.
- 3) There is no Proof of Service on file indicating Petitioner's 12/23/25 Request for Order was served on Respondent.
- 4) Petitioner's Request for Order does not include mandatory form FL-315 (Request or Response to Request for Separate Trial).
- 5) At the prior 3/3/26 hearing, the Court continued the matter to 7/7/26 for lack of service and because Petitioner must file mandatory form FL-315 (Request or Response to Request for Separate Trial) before his Request for Order seeking bifurcation and termination of marital status can be adjudicated.
- 6) There is still Proof of Service on file indicating Petitioner's 12/23/25 Request for Order was served on Respondent.

1 7) Petitioner did not file mandatory form FL-315 (Request or Response to Request for Separate
2 Trial).

3 **B. Findings and Order**

4 1) The Court finds good cause to VACATE the 7/7/26 hearing on Petitioner's 12/23/25 Request for
5 Order for lack of service and failure to file mandatory form FL-315 (Request or Response to
6 Request for Separate Trial). Petitioner was provided additional time to cure these defects and
7 failed to do so.

8 2) Petitioner's 12/23/25 Request for Order seeking bifurcation and termination of marital status is
9 therefore DENIED without prejudice.

10 3) The Court will prepare the Findings and Order After Hearing.
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SUPERIOR COURT OF CALIFORNIA
COUNTY OF SAN FRANCISCO
UNIFIED FAMILY COURT

KEITH RICHARDSON,
Petitioner
VS.
LACHON RICHARDSON,
Respondent

) Case Number: FDI-20-794120
)
) Hearing Date: July 7, 2026
)
) Hearing Time: 9:00 AM
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) Department: 403
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) Presiding: BOBBY P. LUNA
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REQUEST FOR ORDER: MOTION TO SET ASIDE JUDGEMENT CODE 2122; CCP 473

TENTATIVE RULING

The parties are ordered to appear. The parties may appear in person in Dept. 403 or remotely by Zoom video. If a party chooses to appear by video, that party must abide by the Notice and Instructions for Remote Appearances in San Francisco Family Court set forth above.

A. Procedural History

- 1) The parties are Petitioner Keith Richardson and Respondent Lachon Richardson.
- 2) On 2/28/25, the Court entered judgment, which includes a provision for Petitioner to pay Respondent \$160,000 total in \$3,500 monthly payments due on the 1st of each month, commencing 4/1/24 until the balance is paid in full. The amount payable was contingent on Petitioner's accounting documents showing that business earnings from Keith's Chicken and Waffles were no greater than 5% above \$100,000 annually for 2023, and Petitioner was to provide the accounting paperwork within 30 days.
- 3) On 12/17/25, Petitioner filed a Request for Order seeking to set aside judgment under Code of Civil Procedure section 473 and Family Code section 2122. Petitioner asserts that he lacks the ability to comply with the payment terms of the judgment because his income is generated from a small business with limited liquid funds. Petitioner further asserts the Court relied on false information when entering judgment because Respondent represented that she has a \$3,000

1 monthly rent obligation despite living with her parents rent free. Petitioner states the motion is
2 based on, “actual fraud, perjury, failure to disclose material facts, and attorney abandonment.”

3 4) On 2/23/26, Respondent filed a Motion to Strike Petitioner’s Request for Order pursuant to Code
4 of Civil Procedure section 436. Respondent’s request is based on a lack of supporting documents,
5 sufficient facts, and lack of proper service under Code of Civil Procedure section 1010 and
6 California Rules of Court, rule 5.92(b)(1). Attached to Respondent’s Motion to Strike are the
7 documents with which Respondent was served, and Petitioner’s supportive declaration (which
8 was filed with the Court) is not attached.

9 5) At the prior 3/3/26 hearing, the Court made a finding of good cause to continue the hearing to
10 7/7/26 at 9 AM in Dept. 403 for proper service to be effectuated and ordered as follows:

11 a. The Court declines to exercise its discretion under Code of Civil Procedure section 436;
12 Respondent’s Motion to Strike is therefore DENIED.

13 b. At least 16 Court days prior to the next hearing date, Petitioner shall reserve on
14 Respondent the 12/17/25 Request for Order and supportive declaration using a service
15 method authorized by the Code of Civil Procedure and then file form FL-335 (Proof of
16 Service) with the Court confirming service was effectuated.

17 c. At least 9 Court days prior to the next hearing date, Respondent may file a Responsive
18 Declaration.

19 d. At least 5 Court days prior to the next hearing date, Petitioner may file and serve a Reply
20 Declaration.

21 6) On 3/3/26, Respondent filed a Request for Order seeking a Writ of Execution. Respondent
22 requests the Court issue Writ of Execution to permit collection on the judgment entered 2/28/25.
23 Respondent attached a proposed Writ of Execution as Exhibit A to the Request for Order, which
24 indicates the total amount due is \$190,155.07.

25 7) On 3/12/26, Respondent filed a Proof of Service by First-Class Mail – Civil indicating that the
26 Request for Order and supportive pleadings were served on Petitioner on 3/12/26.

27 8) On 5/13/26, Petitioner filed a Responsive Declaration in opposition to Respondent’s Request for
28 Order. Petitioner opposes the issuance of a Writ of Execution, asserting there are unresolved
29 issues concerning the judgment entered 2/28/25.

- 1 9) On 5/14/26, the Court made a finding of good cause to continue Respondent's 3/3/26 Request for
2 Order (seeking a Writ of Execution to permit collection on the judgment entered 2/28/25) to
3 7/7/26 at 9 AM in Dept. 403 to be heard on the same date as Petitioner's 12/17/25 Request for
4 Order (seeking to set aside the judgment under Code of Civil Procedure section 473 and Family
5 Code section 2122).
- 6 10) On 6/23/26, Respondent filed a Responsive Declaration in opposition to Petitioner's Request for
7 Order. Respondent requests the Court deny Petitioner's request to set aside the judgment entered
8 2/28/25 and issue \$5,000 in Family Code section 271 sanctions against Petitioner. Respondent
9 asserts that Petitioner still did not effectuate proper service of the 12/17/25 Request for Order.

10 **B. Findings and Order**

- 11 1) Petitioner's 12/17/25 Request for Order seeking to set aside judgment under Code of Civil
12 Procedure section 473 and Family Code section 2122 is DENIED without prejudice. Petitioner
13 failed to effectuate proper service despite being provided additional time to do so – see Findings
14 and Order After Hearing filed 5/11/26.
- 15 2) The Court is inclined to GRANT Respondent's request for issuance of a Writ of Execution to
16 permit collection on the judgment entered 2/28/25; however, Respondent did not provide a
17 sufficient factual basis upon which the Court can grant Respondent's request because: (a) the
18 terms of the judgment require Petitioner to pay Respondent \$3,500 per month commencing 4/1/24
19 until the total \$160,000 balance is paid in full unless Petitioner is more than 10 days late with
20 payments for more than two months, at which point the entire amount becomes due with 10%
21 legal interest accruing; (b) Respondent did not explain to the Court how the \$30,115.07 in legal
22 interest was calculated in the proposed Writ of Execution attached as Exhibit A to her 3/3/26
23 Request for Order; and (c) Respondent did not present any evidence as to when the \$160,000
24 balance became due to 10% legal interest accruing.
- 25 3) **The parties are ordered to appear**, and Respondent shall be prepared to inform the Court
26 when the \$160,000 balance became due with 10% legal interest accruing (i.e., when Petitioner
27 was more than 10 days late with payments for more than two months). The Court requires an
28 accounting prior entering the Writ of Execution.
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1 4) Respondent's request for \$5,000 in Family Code section 271 sanctions is DENIED as the Court
2 finds conduct on both sides caused unnecessary delay.
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SUPERIOR COURT OF CALIFORNIA
COUNTY OF SAN FRANCISCO
UNIFIED FAMILY COURT

TEJAS SURYAPRAKASH PADLIYA,

Petitioner

VS.

POONAM RAJVAIDYA,

Respondent

) Case Number: FDI-23-798522

) Hearing Date: July 7, 2026

) Hearing Time: 9:00 AM

) Department: 403

) Presiding: BOBBY P. LUNA

OTHER REVIEW HEARING

TENTATIVE RULING

Having read and considered the pleadings, declarations, and other evidence submitted in this matter, the Court makes the following findings and orders:

A. Procedural History

- 1) The parties are Petitioner Tejas Padliya (Father) and Respondent Poonam Rajvaidya (Mother).
According to the Petition filed 8/24/2023 and the Response filed 10/5/2023, the parties agree that they married on 10/10/2021 and separated on 7/31/2023, for a marriage of 1 year and 9 months. The parties' daughter Siya was born on 6/10/2023.
- 2) On 12/27/2023, the Court entered a Restraining Order After Hearing for Mother's protection. The restraining order expires on 12/27/2026.
- 3) On 5/29/2024, Mother filed a Request for Order seeking guideline child support, which was set for hearing on 11/14/2024.
- 4) On 11/14/2024, the Court continued the hearing to 1/16/2025 and ordered both parties to file and serve updated Income and Expense Declarations.
- 5) On 1/14/2025, Father filed an Income and Expense Declaration. Father stated that he was 34 years old and has a college degree and a master's degree. Father stated he was most recently employed as a Software Engineer for Roche from 10/1/2021 through 6/28/2024. According to the

1 paystubs attached to Father's Income and Expense Declaration, Father was working full-time and
2 earning \$18,414 per month. Father stated he had \$21,000 in cash savings and \$36,000 in easily
3 saleable investments, and that he owed \$49,000 for "Personal Study Loan" and \$20,000 for
4 "Marriage expenses loan."

5 6) At hearing on 1/16/2025, the Court set child support to \$0 given Father's statement that his most
6 recent job ended in June 2024, and Father's assertion that he was unemployed and looking for
7 work. The Court set a review hearing for 4/29/2025 to review child support and consider
8 imputing income to Father based on his earning capacity. The Court ordered both parties to file
9 and serve update declarations as well as updated Income and Expense Declarations at least 10
10 calendar days prior to the 4/29/2025 hearing date (neither party complied with this order).

11 7) On 4/24/2025, Father filed a Request to Reschedule the 4/29/2025 hearing. Father stated that he
12 was "scheduled for a full day job interview on the same date as the hearing." Father also stated:
13 "As I am currently unemployed, international student on a visa (F-1), securing employment is
14 critical for maintaining my lawful status and supporting myself and my dependent." Per the Order
15 On Request to Reschedule Hearing filed 4/24/2025, the Court granted Father's request and
16 continued the review hearing to 7/3/2025.

17 8) On 6/26/2025, Father filed a Responsive Declaration in which he asks that the \$0 child support
18 order continue until Father finishes his MBA program in December 2026. Father states that his
19 "international F-1 student visa...does not permit me to work outside the scope of authorized
20 practical training." Father also states that he "applied for roles for the summer of 2025" but "was
21 not able to secure any offers." Father states that he shared his applications with Mother's attorney
22 in March 2025. Father states he will "continue to seek internship opportunities and hope to secure
23 one for the Spring of 2026" and he intends to pursue full-time employment upon completion of
24 his MBA program in December 2026.

25 9) The Court ordered the parties to appear at the 7/3/2025 hearing because Mother had not filed any
26 pleadings since the prior 1/16/2025 hearing date. At the 7/3/2025 hearing, Father stated he still
27 lives in San Francisco, and he is using his savings to pay for expenses. Mother's attorney stated
28 Father's online profiles show that Father is employed. The Court ordered Mother's attorney to put
29 her requests in writing and file her pleadings by 7/24/2025. The Court set a future hearing date of

1 8/21/2025. The Court ordered both parties to file and serve updated Income and Expense
2 Declarations at least 10 calendar days in advance of the 8/21/225 hearing date. The Court noted
3 that it would be inclined to impute at least minimum wage income to Father.

4 10) On 7/25/2025, Father filed a Request to Reschedule the 8/21/2025 hearing. Father stated: "Due to
5 significant financial hardship and my current circumstances, I require additional time to
6 adequately prepare and represent my position effectively. Over the past month, I have diligently
7 applied to more than 100 jobs without success. Currently, I have no source of income and face
8 particular difficulty securing employment due to my status as an international student on an F-1
9 visa. The constraints of my visa status have exacerbated the already challenging job market,
10 significantly impacting my financial stability. Additionally, I am scheduled to attend a full-day
11 technical Computer Science conference on the date of the hearing. Attendance at this event is
12 essential for networking opportunities and potential employment leads, which could substantially
13 improve my financial situation and my ability to support my child." The Court has not yet ruled
14 on Father's request for a continuance.

15 11) On 8/4/2025, Mother filed a document entitled "Child Support Updates and Calculations."

16 Mother states: "Despite being ordered to submit proof of his immigration status to Respondent's
17 counsel, Petitioner has not complied... Petitioner has had over a year since May 2024 to seek
18 employment...nevertheless his actual employment termination occurring in October 2024."

19 Mother did not explain the basis for her belief that Father's most recent position of employment
20 ended in October 2024 (and not June 2024 as Father stated in his Income and Expense

21 Declaration filed 1/14/2025). Mother further states: "Petitioner resides in downtown San
22 Francisco with a rental cost of approximately \$3,000 per month, attends an MBA program costing
23 about \$50,000 annually, and incurs an estimated \$2,500 in additional monthly living expenses.

24 These financial commitments clearly indicate the Petitioner's access to substantial resources."

25 Mother requests that the Court "impute Petitioner's income as follows: From May 2024 to
26 October 2024 \$16,000 monthly income. From October 2024 to present: \$13,333 monthly
27 income."
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1 12) On 8/18/2025, Mother filed an Income and Expense Declaration. According to the paystubs
2 attached to Mother's Income and Expense Declaration, she is employed as a software engineer at
3 eBay and earns \$14,483 per month.

4 13) Per the Proof of Service filed 8/18/2025, Mother's declaration was emailed to Father on
5 8/12/2025 and her Income and Expense Declaration was emailed to Father on 8/18/2025.

6 14) On 8/18/2025, Father filed a Declaration. Father states that Mother "did not file or serve any
7 written requests or pleadings by July 24, 2025, as the Court directed in July hearing. I was
8 deprived of the opportunity to review her written requests and meaningfully prepare any required
9 responses within the timeframes set by the Court. For that reason, I respectfully request additional
10 time to respond to any requests Respondent was required to file but did not timely file... The
11 court has multiple times directed Respondent to file her income and expense statements, but she
12 has not yet filed them. I am F-1 international student visa and under the federal rules I do not
13 currently have employment authorization."

14 15) The Court notes that as of 8/20/2025 Father had not filed an Income and Expense Declaration
15 since 1/14/2025, despite multiple Court orders requiring him to file and serve an updated Income
16 and Expense Declaration.

17 16) At the prior 8/21/2025 hearing, the Court ordered, in pertinent part:

- 18 a. The Court finds good cause to impute to Father 20 hours of minimum wage income per
19 week effective 9/1/2025, as the Court finds that Father has the ability and opportunity to
20 be earning at least this amount while school is in session.
 - 21 b. Mother is welcome and encouraged to conduct discovery. The Court will reserve its
22 jurisdiction to modify child support retroactive to 9/1/2025. If Mother can present
23 evidence that Father has access to more financial resources than he claims and if Mother
24 can prove that Father has been earning more than half-time minimum wage income per
25 month since 9/1/2025, despite Father's statements under penalty of perjury that he is
26 currently earning \$0, the Court will consider modifying child support retroactive to a date
27 on or after 9/1/2025.
 - 28 c. Effective 9/1/2025, Father shall pay to Mother \$107 per month by the 1st of each month.
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1 d. Effective 9/1/2025, Father shall abide by the attached Seek Work Order. If Father obtains
2 a position of paid employment, he shall immediately notify Mother and the Court's
3 jurisdiction to modify child support retroactive to the date he begins receiving
4 employment income is reserved.

5 e. The Court sets a future hearing date of Tuesday, 1/20/2025 at 9:00 AM in Dept. 403 to
6 review child support. At least 10 calendar days prior to the next hearing date, both parties
7 shall file and serve an Update Declaration providing the Court with any material updates
8 and shall file and serve an updated Income and Expense Declaration. Failure to timely
9 file and serve either of these declarations will result in the Court imposing sanctions on
10 that party of at least \$1,000.

11 17) On 1/6/2026, Mother filed an updated Income and Expense Declaration and update declaration.
12 Mother asserts that a confidential investigative report shows that Father has a 1099 in his own
13 name, and he is currently employed by Roche Diagnostics and Medtronic. Mother further asserts
14 that Father maintains a well-established online presence and professional reputation. Mother
15 states Father has not made any child support payments since 9/1/2025. Mother requests Father be
16 ordered to pay the outstanding payments and that child support be modified retroactive to
17 9/1/2025.

18 18) On 1/9/2026, Father filed an updated Income and Expense Declaration and update declaration
19 asserting that he transferred the monthly child support payments to Mother via Zelle and listing
20 transaction ID numbers for 5 payments of \$107. Father states that he does not currently have
21 work authorization and remains unemployed at this time.

22 19) On 1/13/2026, Mother filed an additional update declaration asserting that Father was been
23 previously ordered to comply with preliminary disclosure requirements and sanctioned for his
24 failure to comply. Mother asserts that Father still has not complied and requests the Court order
25 compliance.

26 20) At the prior 1/20/2026 hearing, the Court ordered, in pertinent part:

27 a. The Court finds Mother did not meet her burden to show good cause as to why child
28 support should be modified given that the Court was not provided with evidence of
29 Father's earnings or proof that he was working more than 20 hours per week.

- 1 b. The Court's order effective 9/1/2025 shall remain in full force and effect.
- 2 c. Within the next 30 days, Father shall provide Mother with his tax returns, W-2's and
- 3 1099's for 2024 only.
- 4 d. As it is unclear to the Court whether Father has been providing Seek Work Logs as
- 5 previously ordered, Father is admonished to comply with that order forthwith.
- 6 e. A review hearing is set for Tuesday, 7/7/2026 at 9 AM in Dept. 403.
- 7 f. The Court continues to reserve jurisdiction to modify child support retroactive to
- 8 9/1/2025.
- 9 g. Mother's request regarding Father's failure to comply with Family Code section 2104 is
- 10 beyond the scope of the hearing pursuant to Family Code section 213. However, the
- 11 Court notes Father filed a Preliminary Declaration Regarding Declaration of Disclosure
- 12 and Income and Expense Declaration (FL-141) on 3/24/2025. In so far as Father has not
- 13 fully complied with Family Code section 2104, he is warned that mandatory sanctions
- 14 may result (see Family Code section 2107(c)).
- 15 h. Mother's attorney shall prepare the Findings and Order After Hearing.

16 21) At hearing on 5/26/2026, the Court granted Mother's request for \$20,605 in Family Code section

17 6344 attorney's fees and ordered Father to pay within 30 days. See Mother's Request for Order

18 filed 3/17/2026.

19 22) On 6/8/2026, Mother filed an update declaration asserting that Father misrepresented his income

20 and requesting the Court impute Father at his previous earning capacity as a Software Engineer of

21 \$182,163 (or approximately \$15,180 monthly). Mother requests an order retroactive to May 2024

22 with arrears calculated by the Court. Mother attached Father's 2024 tax return.

23 23) On 6/15/2026, Mother filed an updated Income and Expense Declaration indicating she earns

24 \$12,470 in average monthly income, has \$2,000 in cash assets, and pays \$9,350 in average

25 monthly expenses (\$2,000 of which is childcare).

26 24) On 7/1/2026, Father filed a Responsive Declaration in opposition to Mother's 3/17/2026 Request

27 for Order, which the Court granted at hearing on 5/26/2026.

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1 25) On 7/1/2026, Father filed an updated Income and Expense Declaration indicating he earns \$0 in
2 average monthly income, receives \$85 in average monthly dividends, has \$1,200 in cash assets,
3 has \$6,000 in easily saleable funds, and pays \$6,972 in average monthly expenses.

4 26) On 7/1/2026, Father filed a supplemental declaration wherein he objects to Mother's update
5 declaration asserting timely and proper service was not effectuated. Father opposes Mother's
6 request the Court calculate arrears retroactive to May 2024 as the Court only reserved jurisdiction
7 retroactive to 9/1/2025. Father reiterates his position that he earns \$0 in income and has earned \$0
8 since 9/1/2025.

9 **B. Findings and Order**

10 1) As the party seeking modification of child support, Mother bears the burden of showing a change
11 of circumstances warranting a modification of the order effective 9/1/2025 (Findings and Order
12 After Hearing on 8/21/2025). See *Marriage of Bardzik* (2008) 165 CA4th 1291, 1303-1304.

13 2) At the prior 1/20/2026 hearing, the Court made a finding that Mother did not meet this burden
14 given that the Court was not provided with evidence of Father's earnings or proof that he was
15 working more than 20 hours per week.

16 3) On 6/8/2026, Mother filed an update declaration attaching Father's 2024 tax return, which shows
17 that Father's previous earning capacity as a Software Engineer was \$182,163 (or approximately
18 \$15,180 monthly).

19 4) However, it is undisputed that Father concluded this role on 6/28/2024, a fact the Court
20 considered in its original order setting child support to \$0.

21 5) Though Mother sufficiently established Father's previous earning capacity as a Software
22 Engineer, Mother did not present any evidence that Father currently has access to more financial
23 resources than he claims or has been earning more than half-time minimum wage income per
24 month since 9/1/2025.

25 6) Mother's request for modification of child support is therefore DENIED as Mother provided no
26 proof of Father's current ability to earn at his previous earning capacity. The Court requires
27 concrete evidence of ability and opportunity to earn at the imputed level.

28 7) The Court's order effective 9/1/2025 shall remain in full force and effect. See Findings and Order
29 After Hearing on 8/21/2025 (file dated 11/21/2025).

8) The Court will prepare the Findings and Order After Hearing.

SUPERIOR COURT OF CALIFORNIA
COUNTY OF SAN FRANCISCO
UNIFIED FAMILY COURT

JULIET CUBIAS,

Petitioner

VS.

MARC CHAMBERLAIN JR,

Respondent

) Case Number: FDI-26-802478

) Hearing Date: July 7, 2026

) Hearing Time: 9:00 AM

) Department: 403

) Presiding: BOBBY P. LUNA

REQUEST FOR ORDER FOR CHANGE OF REQUEST FOR ORDER OF CHANGE OF CHILD
CUSTODY AND/OR VISITATION CHANGE OF CHILD CUSTODY, VISITATION (PARENTING
TIME), CHILD INTERVIEWS FOR BOTH CHILDREN

TENTATIVE RULING

Having read and considered the pleadings, declarations, and other evidence submitted in this matter, the
Court makes the following findings and orders:

A. Procedural History

- 1) The parties are Petitioner Juliet Cubias (Mother) and Respondent Marc Chamberlain, Jr., (Father).
There are two minor children subject to this proceeding: Madeline (DOB: 03/06/10) and Marc
(DOB: 08/22/12).
- 2) On March 5, 2026, Father filed a Request for Order seeking a modification of child custody and
visitation (i.e., parenting time) orders. Father seeks joint legal and physical custody. In addition,
Father requests the children attend school in Maine starting the 2026-2027 school year. Father
requests he be the “school parent” and Mother be the “summer and school break parent.” Father
indicates their daughter expressed an interest in attending school in Maine and requests a Tier II
interview of the minor children.
- 3) On May 19, 2026, Mother filed a Responsive Declaration in which she asks this Court to deny
Father’s requests.

1 4) On May 28, 2026, Father filed a “Declaration of Truancy,” which has been read and considered
2 by the Court.

3 5) On June 24, 2026, the parties participated in Family Court Services (FCS) Mediation and did not
4 reach any agreements.

5 **B. Findings and Order**

6 1) This Court has jurisdiction to make child custody orders in this case under the Uniform Child
7 Custody Jurisdiction and Enforcement Act. A violation of this order may subject the party in
8 violation to civil or criminal penalties, or both. The country of habitual residence of the minor
9 child is the United States.

10 2) The Court GRANTS Father’s request for a Tier II interview of the minor children. In particular,
11 the Court would like information about the children’s school preferences and possible move to
12 Maine with Father.

13 3) The matter is continued to **August 6, 2026, at 9:00 a.m. in Department 403** for further
14 consideration and review of Father’s request for move-away and school choice.

15 4) The Court will prepare the Findings and Order After Hearing.
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SUPERIOR COURT OF CALIFORNIA
COUNTY OF SAN FRANCISCO
UNIFIED FAMILY COURT

ALENA CALDER,

Petitioner

VS.

LUDWIG C. CALDER,

Respondent

) Case Number: FDV-25-818613

) Hearing Date: July 7, 2026

) Hearing Time: 9:00 AM

) Department: 403

) Presiding: BOBBY P. LUNA

ORDER TO SHOW CAUSE AND AFFIDAVIT FOR CONTEMPT

TENTATIVE RULING

The parties are ordered to appear. The parties may appear in person in Dept. 403 or remotely by Zoom video. If a party chooses to appear by video, that party must abide by the Notice and Instructions for Remote Appearances in San Francisco Family Court set forth above.